

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1133

Introduced by Kauth, 31.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to claims against the state; to appropriate
- 2 funds for the payment of certain claims; to provide for payment of
- 3 the claims; to authorize agencies to write off certain claims as
- 4 prescribed; and to declare an emergency.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** The following sum of money, or so much thereof as may be
2 required, is hereby appropriated from the General Fund or from other
3 funds as indicated in the state treasury, not otherwise appropriated, for
4 the payment of a state settlement, which has been settled by the Attorney
5 General in the district court and which requires the approval of the
6 Legislature for payment.

7 \$51,791.88 for Miscellaneous Claim Number 2025-01061, pay to Rodney
8 Gerald Hoelscher, 1860 Road 43, Lincoln, NE 68036, out of the General
9 Fund.

10 The claim included in this section shall be paid through Program 536
11 in Agency 65.

12 For informational purposes only, the appropriation contained in this
13 section and fund source:

14 <u>FUND SOURCE</u>	<u>DOLLAR AMOUNT</u>
15 <u>GENERAL FUND</u>	<u>\$51,791.88</u>
16 <u>CASH FUND</u>	<u>\$-0-</u>
17 <u>REVOLVING FUND</u>	<u>\$-0-</u>
18 <u>TOTAL</u>	<u>\$51,791.88</u>

19 **Sec. 2.** The following sum of money, or so much thereof as may be
20 required, is hereby appropriated from the General Fund or from other
21 funds as indicated in the state treasury, not otherwise appropriated, for
22 the payment of indemnification claims which have been settled by the
23 State Claims Board and approved by the district court, which have been
24 settled by the Attorney General in the district court, or in which a
25 court judgment has been entered and which require the approval of the
26 Legislature for payment.

27 \$354,456.23 for Indemnification Claim Numbers CI 24-3163 and CI
28 24-4457, pay to the Trust Account of Fiedler Law Firm, P.L.C., on behalf
29 of Kurt Von Minden, 17330 Wright Street, Suite 102, Omaha, NE 68130, out
30 of the General Fund.

31 The claims included in this section shall be paid through Program

1 592 in Agency 65.

2 For informational purposes only, the appropriation contained in this
3 section and fund source:

4 <u>FUND SOURCE</u>	<u>DOLLAR AMOUNT</u>
5 <u>GENERAL FUND</u>	<u>\$354,456.23</u>
6 <u>CASH FUND</u>	<u>\$-0-</u>
7 <u>REVOLVING FUND</u>	<u>\$-0-</u>
8 <u>TOTAL</u>	<u>\$354,456.23</u>

9 **Sec. 3.** The following sums of money, or so much thereof as may be
10 required, are hereby appropriated from the General Fund or from other
11 funds as indicated in the state treasury, not otherwise appropriated, for
12 the payment of workers' compensation claims which have been settled by
13 the Attorney General in the Nebraska Workers' Compensation Court or in
14 which court judgments have been entered and which require the approval of
15 the Legislature for payment.

16 \$400,000.00 for a workers' compensation claim, pay to the Trust
17 Account of High & Younes, LLC, on behalf of Greg Mosley, 6919 Dodge
18 Street, Omaha, NE 68132, out of the Workers' Compensation Claims
19 Revolving Fund.

20 \$162,500.00 for a workers' compensation claim, pay to the Trust
21 Account of Atwood Law, P.C., L.L.O., on behalf of Stewart Craig, 575
22 Fallbrook Boulevard, Suite 206, Lincoln, NE 68521, out of the Workers'
23 Compensation Claims Revolving Fund.

24 \$20,000.00 for a workers' compensation claim, pay to the Trust
25 Account of Handley Law, PC, LLO, on behalf of Kenneth Cobb, 1141 H
26 Street, Lincoln, NE 68508, out of the Workers' Compensation Claims
27 Revolving Fund.

28 \$300,000.00 for a workers' compensation claim, pay to the Trust
29 Account of Keating, O'Gara, Nedved & Peter, PC, LLO, on behalf of Todd
30 Rasmussen, 200 South 21st Street, Suite 400, Lincoln, NE 68510, out of
31 the Workers' Compensation Claims Revolving Fund.

1 The claims included in this section shall be paid through Program
2 593 in Agency 65.

3 For informational purposes only, the appropriations contained in
4 this section and fund source:

5 <u>FUND SOURCE</u>	<u>DOLLAR AMOUNT</u>
6 <u>GENERAL FUND</u>	<u>\$-0-</u>
7 <u>CASH FUND</u>	<u>\$-0-</u>
8 <u>REVOLVING FUND</u>	<u>\$882,500.00</u>
9 <u>TOTAL</u>	<u>\$882,500.00</u>

10 **Sec. 4.** The Director of Administrative Services is hereby
11 authorized and directed to draw his or her warrants upon the funds in the
12 state treasury enumerated in this act, in favor of the several
13 beneficiaries named in this act for the amount set opposite their
14 respective names, upon the presentation of proper vouchers therefor. The
15 several amounts appropriated in this act shall be in full payment of any
16 and all claims, rights, causes of action, damages, and demands of every
17 character and kind owing by or against the State of Nebraska, its
18 officers, agents, and employees, and their successors and assigns with
19 respect to each of the beneficiaries respectively in whose favor the
20 appropriations are made. The director shall not deliver any warrant for
21 any items appropriated in this act until a receipt and release in full,
22 releasing the State of Nebraska, its officers, employees, and agents, and
23 their successors and assigns, has been filed by each of the beneficiaries
24 respectively. Upon presentation of the warrants, the State Treasurer is
25 hereby directed to pay the same out of money in the General Fund or out
26 of money in other funds indicated in this act not otherwise appropriated.

27 **Sec. 5.** The following requests were filed by state agencies seeking
28 permission to write off certain accounts. The State Claims Board reviewed
29 and approved the following requests:

30 \$856.00 for Request Number 2026-01512, made by the State Fire
31 Marshal.

1 \$1,032,144.79 for Request Number 2026-01520, made by the Department
2 of Health and Human Services.

3 \$98,759.21 for Request Number 2026-01521, made by the Department of
4 Transportation.

5 \$1,708,343.43 for Request Number 2026-01524, made by the Department
6 of Labor.

7 \$2,647.70 for Request Number 2026-01526, made by the Department of
8 Veterans' Affairs.

9 **Sec. 6.** Since an emergency exists, this act takes effect when
10 passed and approved according to law.